

**IN THE COURT OF COMMON PLEAS OF FAIRFIELD COUNTY, OHIO
DOMESTIC RELATIONS DIVISION**

LAMONT EVANS
Plaintiff,

CASE NUMBER 12 JU 9451

JUDGE PRIESSE

V.

MAGISTRAKRIPPEL

TALICIA TOWNSEND
Defendant.

AFFIDAVIT OF DEFENDANT

STATE OF OHIO, COUNTY OF FRANKLIN: SS

I, Talicia Townsend, being first duly cautioned and sworn, make the following statements
contra Plaintiff's Motion for Temporary Orders.

1. Lamont Evans and I attended a mediation session through Franklin County in 2010. This was done in order for us to come up with a parenting agreement concerning our three children and was initiated by Lamont Evans.
2. We negotiated to completion the following terms:
 - a. We agreed that I would drop the kids off to Lamont Evans at his job on Saturday nights at 8pm. The kids would stay with him through the week, and on Thursday morning he would drop them off at school in the morning. I believe that 8 pm is too late for the kids to be dropped off and I have brought this to the attention of Lamont, within the last month he has let me drop the kids off at 7 pm but will not let them arrive any earlier, and he is not willing to change the time of the kids drop off to an earlier time. This is supposed to happen every other week. In April of 2011, Lamont Evans and my then boyfriend had a verbal conflict over the

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phone, and he did not communicate or see his kids for seven months. After the seven months had passed, Lamont began seeing the kids every other weekend (I would drop them off to him on Saturday nights and he would drop them off at school on Monday mornings to return home after school was out). The every other week schedule (Saturday- Thursday) is currently being followed and has been in effect since the end of June 2012.

b We agreed to continue on the following holiday schedule: We alternate the major holidays Thanksgiving and Christmas every year. The other holidays such as New Year's Day, Easter, Memorial Day, Mother's Day, Father's Day, Fourth of July, and Labor Day, we don't put a lot of emphasis on so therefore we don't rotate them.

- 3 Lamont Evans is ordered to pay \$420.00 a month in child support for all three children and I am ordered to carry health insurance for all three children. This order was set by the Franklin County Child Support Enforcement Agency and has been effective since May of 2010. As to date, I have not received child support since August of 2012.
- 4 I work full time between the hours of 9:30 am until 6:00 pm. On the days that the kids are in my care, I drop the kids off at school by 8:00 am and they are picked up by my fiancé Brandon Hunt by 5:00 pm. When they arrive home they have a snack and do homework until they're finished with it or until dinner is complete, whichever comes first. On Friday afternoons from 5:30 pm until 7:00 pm, the kids attend an after school program at Glennwood Recreation Center where they receive extra help with their homework, interact with other kids their age, and do special crafts and sometimes field trips.

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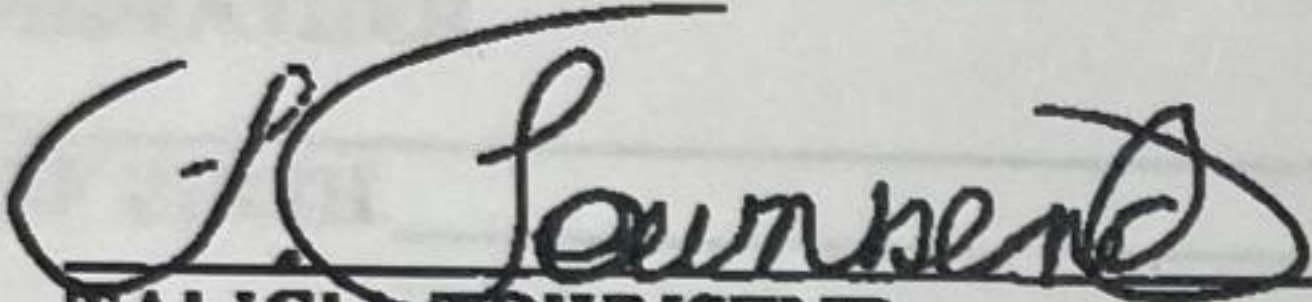
5 My three children have lived with me from the time they were born and have not ever been away from me for longer than a week. I know that the kids are used to the routine that they have now, which includes going between my and their father's house every other week, and would not want it to be changed, due to the fact that the kids have a close relationship with me as well as their father. They enjoy being able to spend time and living with us both, they also enjoy getting the chance to interact with their families and the other people that are involved in their lives when they are with us on a daily basis. During the summer we take vacations as a family. On the weekends we go out to dinner, visit other family members, and also do other outings such as Magic Mountain, Chuck E Cheese, skating, etc. as well as hands on projects around the house.

6. The kids are not currently involved in any extra-curricular activities. I have a desire to enroll them in sports and other activities, however, Lamont objects to this because he feels since he is their father he should be the one to enroll them in such things, so in order to keep the peace between us I have withheld from enrolling them into extra-curricular activities for now. I am very hands on at the kids' school and keep in close contact with their teachers to keep track of their progress and the things they need to work on. Last year when Isaiah had a little trouble adjusting to kindergarten, my fiancée and I met with Isaiah's teacher often to come up with solutions to keep Isaiah motivated and challenged. When I addressed this with Lamont not only was he absent during these meetings, but he made the statement "when the kids are at my house, my focus is to show them a good time, I don't see them that often so when I do see them I make sure they have fun and not focus on disciplining and constant learning."

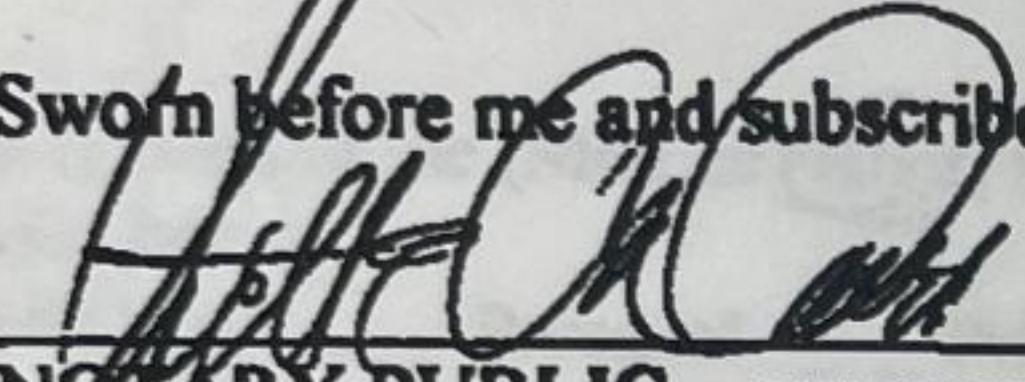
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7. The Franklin County Family Assessment department has recommended that the current visitation schedule be maintained and states that the children are okay with the current visitation schedule. Nevertheless I believe that the few tweaks to the current schedule referenced above are necessary in the best interests of the children

FURTHER AFFIANT SAYETH NAUGHT.

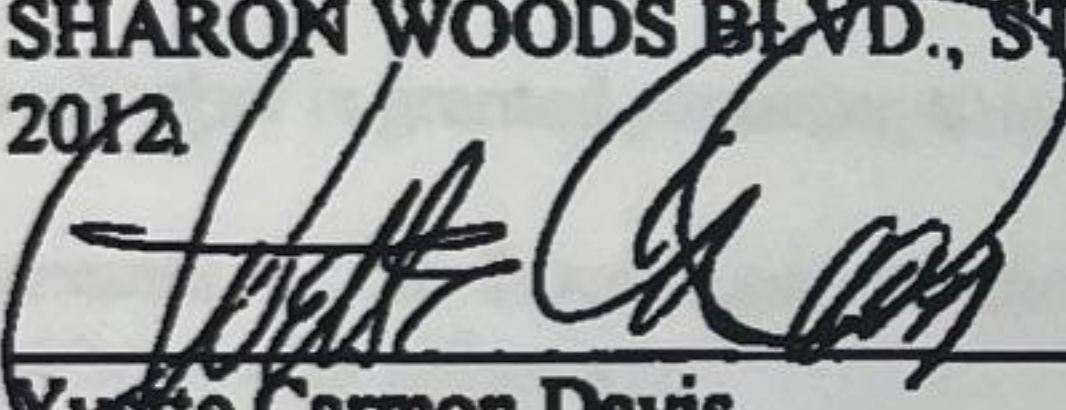

TALICIA TOWNSEND

Sworn before me and subscribed in my presence this 4th day of December 2012


NOTARY PUBLIC - my commission never expires

CERTIFICATE OF SERVICE

A copy of this Affidavit was served on counsel for Plaintiff, Beverly J. Corner, 5918 SHARON WOODS BLVD., STE 100, 43229, Columbus, OH, 43229 on the 4th day of December 2012


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